

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Jayson Vasquez, Joshua Cordon and Angel Cordon,	:	
	:	Index Number:
Plaintiffs,	:	Date Purchased:
	:	Date Filed:
-against-	:	SUMMONS
City of New York, New York City Police Department,	:	
Police Officer Kristopher Persaud, Shield 3285 of 45	:	
Precinct and New York City Police Officers John Doe,	:	
	:	Plaintiff Vasquez's
	:	residence is:
	:	2237 Second Avenue
	:	New York, NY 10029
Defendants	:	
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: July 11, 2022,
New York, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Kristopher Persaud, Shield 3285 of 45 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Jayson Vasquez, Joshua Cordon and Angel Cordon,

Plaintiffs, :

-against- : VERIFIED COMPLAINT
:

City of New York, New York City Police Department, :
Police Officer Kristopher Persaud, Shield 3285 of 45 :
Precinct and New York City Police Officers John Doe :

Defendants.

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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Jayson Vasquez, (hereinafter referred to as "VASQUEZ") resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Joshua Cordon, (hereinafter referred to as "J. CORDON") resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Angel Cordon (hereinafter referred to as "A. CORDON") resides in Bronx County, State of New York.
4. That at all times hereinafter mentioned, Police Officer Kristopher Persaud, Shield 3285 of the 45 precinct (hereinafter referred to as "PERSAUD") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of Plaintiffs, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

8. On or about February 8, 2022 notice required by Municipal Law 50-E was given to City of New York, by personal service as to all Plaintiffs. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

9. On or about May 13, 2022 a hearing required by Municipal Law 50-H was conducted for Plaintiffs. At said hearing all Plaintiffs testified and set forth the facts underlying Plaintiffs’ claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

10. That on or about February 2, 2021 at approximately 6:00 AM in the vicinity of 3079 East Tremont Avenue, Bronx NY, Plaintiffs were inside of a retail store.

11. That while Plaintiffs were inside of the retail store, J. CORDON was shot by someone who was outside of the store.

12. That PERSAUD and DOES entered the retail store and arrested Plaintiffs.

13. That at no time had Plaintiffs engaged any unlawful or illegal activity.
14. That at no time did any Plaintiff possess or exercise custody and control over a gun.
15. That despite the above, PERSAUD and DOES handcuffed and arrested Plaintiffs.
16. That after Plaintiffs were arrested they were each taken to the 45 precinct.
17. That while at the 45 precinct, each of the Plaintiffs were subjected to a search and that nothing of an illegal or unlawful nature was recovered.
18. That while at the 45, Plaintiffs were placed into a cell with numerous other males.
19. That after being held at the 45 precinct for several hours, Plaintiffs were each transported to Central Booking, located at 215 East 161 Street, Bronx NY.
20. That while inside of Central Booking, Plaintiffs were forced to remain inside of a holding cell with numerous other people.
21. That after spending numerous hours in Central Booking, Plaintiffs were each released after the Office of the Bronx County District Attorney declined to prosecute each of the Plaintiffs arrests.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiff VASQUEZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.
23. That Defendants acted with actual malice toward Plaintiff VASQUEZ and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
24. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

25. That as a result of the actions by Defendants, Plaintiff VASQUEZ was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

26. That as a result of the Defendants' actions, Plaintiff VASQUEZ has been unable to sleep.

27. That as a result of the Defendants actions, Plaintiff VASQUEZ was forced to miss multiple days of work.

28. That as a result of the Defendants' actions Plaintiff VASQUEZ sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

29. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28, as if more fully stated herein at length.

30. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff VASQUEZ as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

31. Defendants having no lawful authority to arrest Plaintiff VASQUEZ, did, nevertheless, unlawfully arrest Plaintiff VASQUEZ with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff VASQUEZ is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Defendants conspired to violate Plaintiff VASQUEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff VASQUEZ is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Plaintiff VASQUEZ was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff VASQUEZ to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff VASQUEZ by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff K. DIALLO. Plaintiff VASQUEZ is thus entitled to compensatory and exemplary damages.

36. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff VASQUEZ by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. At all times pertinent hereto, PERSAUD and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

39. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PERSAUD and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff VASQUEZ. Plaintiff VASQUEZ is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

42. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff VASQUEZ.

44. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff VASQUEZ.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

45. Plaintiff J. CORDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44 as if more fully stated herein at length.

46. That Defendants acted with actual malice toward Plaintiff J. CORDON and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff J. CORDON.

47. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

48. That as a result of the actions by Defendants, Plaintiff J. CORDON was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

49. That as a result of the Defendants' actions, Plaintiff J. CORDON has been unable to sleep.

50. That as a result of the Defendants' actions, Plaintiff J. CORDON was forced to miss multiple days of work.

51. That as a result of the Defendants' actions Plaintiff J. CORDON sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

52. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff J. CORDON as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

54. Defendants having no lawful authority to arrest Plaintiff J. CORDON, did, nevertheless, unlawfully arrest Plaintiff J. CORDON with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff J. CORDON is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

55. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54, as if more fully stated herein at length.

56. Defendants conspired to violate Plaintiff J. CORDON's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State

Constitution, for which Defendants are individually liable. Thus, Plaintiff J. CORDON is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AS DEFENDANTS

57. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 56, as if more fully stated herein at length.

58. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff J. CORDON to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff J. CORDON by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff J. CORDON. Plaintiff J. CORDON is thus entitled to compensatory and exemplary damages.

59. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff J. CORDON by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

60. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. At all times pertinent hereto, PERSAUD and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

62. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PERSAUD and DOES committed within the scope of his employment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff J. CORDON. Plaintiff J. CORDON is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

65. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64, as if more fully stated herein at length.

66. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff J. CORDON.

67. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff J. CORDON.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

68. Plaintiff A. CORDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 67 as if more fully stated herein at length.

69. That Defendants acted with actual malice toward Plaintiff A. CORDON and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff A. CORDON.

70. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

71. That as a result of the actions by Defendants, Plaintiff A. CORDON was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

72. That as a result of the Defendants' actions, Plaintiff A. CORDON has been unable to sleep.

73. That as a result of the Defendants' actions, Plaintiff A. CORDON was forced to miss multiple days of work.

74. That as a result of the Defendants' actions Plaintiff A. CORDON sustained damage to her persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

75. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 74, as if more fully stated herein at length.

76. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff A. CORDON as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

77. Defendants having no lawful authority to arrest Plaintiff A. CORDON, did, nevertheless, unlawfully arrest Plaintiff A. CORDON with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff A. CORDON is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

78. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77, as if more fully stated herein at length.

79. Defendants conspired to violate Plaintiff MAMOUDOU's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff A. CORDON is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

80. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 79, as if more fully stated herein at length.

81. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff A. CORDON to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff A. CORDON by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff A. CORDON. Plaintiff A. CORDON is thus entitled to compensatory and exemplary damages.

82. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff A. CORDON by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A NINETEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

83. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 82, as if more fully stated herein at length.

84. At all times pertinent hereto, PERSAUD and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

85. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PERSAUD and DOES committed within the scope of his employment.

AS AND FOR A TWENTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

86. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 85, as if more fully stated herein at length.

87. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff A. CORDON. Plaintiff A. CORDON is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST DEFENDANTS

88. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 87, as if more fully stated herein at length.

89. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff A. CORDON.

90. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff A. CORDON.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the Plaintiff is because the Plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the Plaintiff, review of records and documents within affirmant's possession.

Affirmed: September 23, 2022

Jason Steinberger
Jason A. Steinberger